

21STCV21246 21STCV21246

County: los-angeles

Division: Civil Law and Motion

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Case Number: 21STCV21246 Hearing Date: September 10, 2026 Dept: 414

21STCV21246

S.C. v. County of Los Angeles, et al.

Thursday, September

10, 2026

FINAL [MODIFIED]

ORDER GRANTING

IN PART DEFENDANT LOS ANGELES UNIFIED SCHOOL DISTRICT'S MOTION TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR ADMISSION FROM PLAINTIFF [Res. No. -5269]

I.

BACKGROUND

The

complaint alleges that Defendants, various public entities including moving party Los Angeles Unified School District ("Defendant"), discriminated against Plaintiff over the course of years by failing to provide for her special needs as a disabled individual while she was in the entities' care as a foster child, patient, or – for the moving Defendant – a student. Plaintiff asserts independent claims for negligence against each of the four entity defendants and a single claim for violation of Education Code sections 200 and 220.

II.

ARGUMENTS

A.

Motion filed May 22, 2026.

Plaintiff

served vagueness objections to RFAs that are not vague, and in any case did not attempt to respond to the extent possible.

B.

Opposition filed August 27, 2026.

The RFAs are unmanageably vague, and Defendant did not meet and confer as required.

C.

Reply filed September 2, 2026.

Meeting

and conference requirements are relaxed for such a straightforward dispute. Other parties have responded to the same RFAs to the extent possible even where they asserted vagueness objections.

III.

LEGAL STANDARD

The

party to whom requests for admission have been directed shall respond in writing, under oath, separately to each request. (§ 2033.210(a).) The response must either admit or deny the matter, or state that a reasonable inquiry was made and the party lacks sufficient information to admit the matter. (§ 2033.220.) If the response is an admission, the admission may “[a]dmit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.” (§ 2033.220(b)(1).)

If the

responding party makes an objection that the propounding party considers to be “without merit or too general,” or an answer which the propounding party finds evasive or incomplete, the propounding party may move for an order compelling further response. (§ 2033.290 (a)(2).) The motion must be accompanied by a meet and confer declaration and a separate statement or concise outline. (§ 2033.290(b).)

IV.

DISCUSSION

Meeting and Conference

As an initial matter: the Court finds

Defendant's efforts to meet and confer by letter sufficient, although barely.

Defendant is admonished to make better efforts to meet and confer before future motions.

Requests in Dispute

The following eight RFAs are in dispute:

1.

ADMIT that YOU did not agree to have S.C.
placed at the Texas Hill Country School.

2.

ADMIT YOU told the IEP Team at the April
2020 IEP Team meeting words to the effect that wherever Plaintiff S.C is
placed, S.C. needed to be in a locked facility.

3.

ADMIT YOU were informed that the Texas
Hill Country School was not a locked facility.

4.

ADMIT that the staff of the County of Los
Angeles contacted many locked facilities to find a placement for Plaintiff
S.C.

5.

ADMIT that between 2017 and 2020, no
locked facility agreed to accept Plaintiff S.C.

6.

ADMIT that Plaintiff S.C. was rejected for placement at Devereux Texas and Devereux Florida.

7.

ADMIT that you were informed in IEP meetings that many facilities had refused to accept Plaintiff S.C.

8.

ADMIT that between the day that Plaintiff S.C. was placed in College Hospital in 2017 and the day the Judge Rothenberg Center agreed to accept S.C., no other locked facility agreed to accept S.C.

In response to each of these RFAs Plaintiff objected on various grounds, including vagueness and the assumption of the truth or existence of a disputed fact, and stated that Plaintiff lacked sufficient information to admit or deny.

Requests Nos. 1-3 and 7

For RFAs 1-3 and 7 in particular, Plaintiff objected the the term "YOU" is ambiguous and rendered the Requests compound because the Requests defined the term to include "Plaintiff S.C. or the approved Guardian for Plaintiff S.C., attorneys for Plaintiff, or any other person acting on behalf of Plaintiff S.C. or who has acted on behalf of Plaintiff S.C. in this litigation."

The Court disagrees that the term "YOU" is ambiguous or renders the requests compound. It reasonably refers to "S.C. or anyone acting on S.C.'s behalf", as indicated by the language "any other person acting on behalf of Plaintiff S.C."

With this in mind, Plaintiff's responses to Requests Nos. 1, 3, and 7 are insufficient. Code of Civil Procedure section 2033.220 requires Plaintiff to admit or deny to the extent possible. If Plaintiff is aware of anyone acting on S.C.'s behalf either (1) agreeing to have S.C. placed or (3) being informed that the specified school was not a

locked facility, S.C. must admit as much. Otherwise, Plaintiff may deny for lack of information.

As to RFA No. 2, however, the Court agrees the request is fatally vague or ambiguous. The term “words to the effect of” is too subjective to be susceptible to admission. In fact, even an unqualified admission would not serve the purpose of the discovery mechanism; it would simply raise new disputes on the definition of Defendant’s chosen term, rather than clarifying or narrowing matters for settlement or trial.

Request No. 4

Plaintiff’s response to No. 4 complies with the Code, and Plaintiff’s vagueness objection is sustained. Plaintiff cannot reasonably be asked to admit what County staff did or did not do, and the term “many locked facilities” is ambiguous.

Requests Nos. 5 and 8

Plaintiff’s responses to Requests Nos. 5 and 8 are insufficient for similar reasons to Requests Nos. 1, 3, and 7. Plaintiff must admit whether the statements are true based on the information available to Plaintiff at this time. For agreements by locked facilities not within Plaintiff’s knowledge, Plaintiff may refuse to admit or deny.

Request No. 6

Plaintiff’s vagueness objection to Request No. 6 is sustained. The term “rejected for placement” is not defined in the Requests, and the Request is not confined to any particular time period. As with RFA No. 2, even an unqualified admission would open new disputes over what amounts to a “rejection for placement.”

Sanctions

No sanctions are requested or awarded.

V.

CONCLUSION

Based on the foregoing, Defendant's motion
is GRANTED IN PART and DENIED IN PART.

Plaintiff is ordered to provide
supplemental responses to Requests for Admission Nos. 1, 3, 5, 7, and 8 within
30 days, admitting or denying the specified matters to the extent possible
based on information currently available to Plaintiff.

As to Requests for Admission Nos. 2, 4, and
6, the motion is denied.